EASYCUT

CREATOR PLAYBOOK / 03



ENGLISH / US EDITION

The Short-Video Copyright Guide

Essential checks before using others' videos, from selection to monetization review. For YouTube, Instagram, TikTok creators. 2026 Edition.

AI-generated illustrative creator

36 PAGES / 2026 EDITION

Before You Read This Book

This is not a legal advisory document. Instead, it’s a practical checklist to help you reduce risks before uploading content.

Copyright and platform policies can vary by country, case, contract, and content type. For important projects or disputes, consult a copyright expert.

What this book does:
- Helps you quickly judge what to check during video selection, editing, uploading, and responding to claims.

What this book does NOT do:
- Does not guarantee the legality of specific videos, platform approval, monetization eligibility, or success in disputes.

Reference date: 2026-11-01. Based on Korean copyright law and official platform guidance as of that date.

Contents

Six practical sections for quick reference in any situation:

01 Stop believing in ‘safe seconds’ myths
08
02 Check rights before using any video
11
03 How far can you go with fair use and quotation?
16
04 Editing with new analysis and interpretation
20
05 Each platform has different review standards
27
06 How to respond if you receive a claim
31
BONUS
Easy Cut Pre-Upload Checklist
34

Core Principles: Copyright vs. Monetization

Passing a copyright check is not the same as being eligible for monetization.

Just because there’s no copyright issue doesn’t mean your video will be monetized. And if your video is monetized, that doesn’t mean there are no copyright risks.

1. Legal Basis
Do you have permission, a license, or a valid reason like fair use or quotation to use the content?

2. Platform
Are you prepared for automatic detection, claims, audio removal, deletion, or account penalties?

3. Monetization
Is your video clearly original, not just reused or repetitive content, and does it show your unique value as a creator?

Risk Map for Shorts Creators

What to check before speed: Each source-video, audio, images, comments, fonts-may have different rights.

Before using content:
- Check who created it and what permissions are granted.

While editing:
- Make sure your interpretation and explanation are central to the content.

After uploading:
- Keep evidence and respond according to the type of notification you receive.

Three Checkpoints Before Uploading

If you can’t answer clearly on any of these three, verify before publishing:

01 Legal Basis
Permission, license, or exception

02 Platform Policy
Detection, deletion, or penalties

03 Monetization Originality
Commentary, analysis, or new value

Check rights > Edit for originality > Review platform rules > Keep proof

Even with heavy editing, lack of actual permission can still be risky.
Even if you might win a legal dispute, you can’t fully avoid automatic detection or claims.
Even with the original creator’s permission, simple re-uploads may face monetization limits.

How to Use This Book

Subtitle: Practical steps for safer, more confident video uploads and copyright checks.

Myth Busting: There’s No Universal Safe Limit

Goal of this section: Dispel common myths about copyright safety lines.

Remember: There is no universally safe editing ratio or automatic exemption feature. Always check the actual rules and context before uploading.

Common Copyright Myths Debunked

1. Under 5 seconds is always safe.
Even a short clip can cause issues if it uses the core scene or music from the original work.

2. Flipping the video horizontally avoids detection.
Trying to evade detection is not the same as having permission to use the content.

3. Adding subtitles makes it a new video.
Simply adding subtitles, cropping, or changing speed does not make the work original enough.

4. Turning off monetization makes it okay.
Whether or not you profit is only one factor in fair use analysis, not an automatic exemption.

Giving Credit Is Not Permission

1. Listing the source is enough.
Citing the source is important, but it does not replace getting permission from the copyright holder.

2. Anything published online is free to use.
Just because you can view something online does not mean you have the right to copy, edit, or re-upload it.

3. Everyone else is using it.
Other people uploading the same content does not prove you have the right to use it.

4. Adding AI effects makes it a new work.
Simply applying filters or effects without adding new meaning or message still carries risk.

Disclaimers do not create rights.
The only sure grounds are explicit permission, a license, or a legal exception.

Check Rights Before Importing Content

Goal of this section: Distinguish between the risk level of the original source and the scope of your permission.

Remember: There is no universally safe editing ratio or automatic exemption feature. Always confirm your rights before using any content.

Relatively Safe Original Sources (Green Zone)

Even for safer sources, always check usage terms and third-party elements separately.

1. Original footage you filmed yourself, with all rights to participants, locations, and music cleared.
2. Written permission, clearly stating what editing, re-uploading, monetization, and platform use are allowed.
3. Licensed content, where you follow the terms allowing commercial use and modifications.
4. Public domain or government works, after confirming the license type and any required attribution.
5. Official remixes, used within the platform’s provided features and allowed scope.

Even green zone sources are not automatically safe.
Always check the rights for music, photos, and people appearing in your video separately.

Traffic Light: Content Risk Levels

Yellow and Red: Know the Difference First

Green - Relatively Clear Grounds
- Footage you filmed yourself
- Written permission
- Licensed content used according to terms

Always save proof of rights and check for third-party elements.

Yellow - Use Only After Verification
- Interviews
- Podcasts
- News
- Lectures
- Gameplay

For these, confirm not only with the creator but also with any other rights holders and clarify your intended use.

Red - High Risk
- Movies
- TV dramas
- Live sports broadcasts
- Concerts
- Paid courses

Never re-edit and upload key scenes from these without explicit permission.

Especially Risky Patterns
- Compiling and ranking other creators' Shorts
- Summarizing key scenes from streaming services, paid courses, or music videos
- Removing watermarks or re-uploading while hiding the creator
- Downloaded files with unclear sources or licenses

Permission: Getting Clear Usage Rights

"Just saying 'You can use it' isn't enough."

The more specific the permission, the stronger your position.
Keep a record of the allowed usage in messages or documents.

Key Points to Clarify:
- Which original content and segments can you use?
- Can you edit or transform it into vertical Shorts?
- Can you post it on YouTube, Instagram, or TikTok?
- Is commercial use and monetization (ads, affiliate, sponsorship) allowed?
- Are there limits on duration, region, or number of accounts?
- Does the person granting permission have rights to all third-party elements (music, photos, etc.)?

Sample Permission Request:
Hello! May I edit part of the video below into a vertical Short and post it on my channel for monetization? The platforms would be YouTube, Instagram, and TikTok, and I will credit the source. Please let me know if you agree to video editing and commercial use.

Read the Actual License Terms

Creative Commons licenses use conditions in combinations. Read the exact license and version.

BY: Give appropriate attribution and follow the license conditions.
NC: Noncommercial use only. Do not assume an ad-supported or affiliate video qualifies.
ND: Restrictions on sharing adaptations may affect translations and re-edits.
SA: Check the same-license requirements when sharing adaptations.

Government material is not one universal category.
A public agency website does not automatically grant permission to reuse everything on it. Read the terms for the actual file, including commercial use, edits, attribution and third-party material.

Do not apply a foreign government numbered license types as a universal US rule. Record the actual license, rights holder, version, URL and review date, and check every embedded image, song and clip separately.

Fair Use: Center Your Own Commentary

Build a Structure Where Your Commentary Is Central

FAIR USE
Goal of This Section:
Create a structure where your own explanation is the main focus.

Remember: There is no safe percentage or automatic exemption for editing.

Fair Use: The Four Factors

Fair use is judged by considering all four factors together.

Adapted for Shorts, the four factors are:

1. Purpose and Character of Use
Is it for criticism, education, or analysis, or does it simply let viewers consume the original?

2. Nature of the Copyrighted Work
Is it factual material, or is it highly creative like movies or music?

3. Amount and Substantiality Used
Did you use only what was necessary, or did you take the key scene even if it was brief?

4. Effect on the Market or Value
Does your Short substitute for the original's viewing, purchase, or licensing market?

Meeting only one factor does not guarantee fair use.

Quotation: Make Your Commentary the Focus

Quotation: Your Commentary Should Be the Focus, Not the Original

Risky Structure
Showing long original scenes and then adding just a sentence or two at the end. In this case, viewers are more interested in the original's entertainment or conclusion than your commentary.

Original Takes Center Stage

Better Structure
Start with a question or main point, show only the necessary segment, and then follow up with your analysis and conclusion.

Your Interpretation Takes Center Stage

Use the original as evidence or an example, but make sure the purpose and message of the Short are your own.

No Magic Number for Safe Use

There is no automatic safe line like 5 seconds, 10 seconds, or 30%.

What matters is not 'how short' the clip is, but 'why you need that specific part.'

1. Short but Risky
Using the most crucial part of a work-like a movie twist, a game-winning moment, or a song's chorus-can still be risky, even if the segment is brief.

2. Long Doesn't Mean Safe
Even for education or criticism, showing more of the original than necessary increases risk.

3. Key Questions to Ask
Would my analysis fall apart if I left out this segment?
Could I make the same point with a shorter excerpt?

Transformation: Adding New Perspectives

PART 04
New Analysis and Interpretation

The goal here is to add new perspectives, not just effects.

Remember: There is no safe editing ratio or automatic exemption feature.

The Ladder of Originality in Editing

TRANSFORMATION
The Originality Ladder

The lower rungs represent simple edits; the higher rungs show a clear new purpose and message.

5. New Conclusion
Presenting conclusions not found in the original, using comparison, analysis, or data.

4. New Structure
Connecting different sources to build a new narrative.

3. Commentary/Critique
The creator's voice and viewpoint remain central throughout.

2. Comments/Context
Grouping and explaining reactions and their meanings.

1. Simple Edits
Just cropping, adding subtitles, changing speed, filters, or background music.

Note: Climbing higher on the ladder does not automatically grant you the right to use the original work.

Before/After: Editing for Originality

BEFORE / AFTER
The editing purpose changes the risk level, even with the same source material.

Riskier Editing
- Playing highlights at length without changes
- Only adding auto-generated subtitles and background music
- Delivering the original's conclusion and entertainment as-is
- No creator voice, evidence, or new conclusion
- Repeating nearly identical templates as other Shorts

Editing That Shows Originality
- Presenting the main issue or question first
- Quoting only the necessary scenes briefly
- Comparing and analyzing comments, data, or facts
- Centering the creator's commentary in the content
- Offering a different conclusion and viewing purpose from the original

It's not about adding effects-it's about adding new reasons and perspectives.

Easy Cut Comment Template: Analyze, Don’t Just Add Comments

EASY CUT COMMENT TEMPLATE
Don't just add comments-analyze the reactions.

The comment template combines viewer reactions with the creator's interpretation of the original, helping you create more original content than a simple summary.

Original Scene > Representative Reactions > Creator Analysis > New Conclusion

Important: Using the comment template alone does not automatically resolve copyright issues or guarantee fair use.

4-Step Format for Comment Analysis

4-STEP FORMAT
How to Turn Comment Templates into Analytical Content

1. Present the Issue
"When this scene was released, reactions were completely divided."

2. Categorize Reactions
Group comments by meaning, such as agreement, disagreement, surprise, or skepticism.

3. Explain the Context
Connect the divided opinions to the context and evidence from the original work.

4. Offer a New Conclusion
Don't just list comments-present your own judgment as the creator.

Comments aren't just decoration-they're analytical material for a fresh reading of the original.

Difference Between Listing and Analyzing Comments

Simple Listing
Play the original scene while displaying comments like 'Amazing,' 'Looks staged,' or 'Is this really possible?' one after another. There are no questions, supporting evidence, or conclusions from the creator.

Analytical Comment Template
1. 'When this scene was released, reactions split into two camps.'
2. Compare representative responses from the skeptical group and the factual group.
3. Connect earlier context and additional materials to explain the reasons for the differing opinions.
4. Present a new conclusion, such as: 'The core controversy is not about authenticity, but about the loss of context during editing.'

EasyCut Tips
- Group representative comments by emotion and argument.
- Insert the creator’s questions and interpretations between comments.
- Use only the segments of the original needed for your explanation.

Comment Templates Are Not Automatic Shields

Comment templates are not an automatic exemption from copyright or platform rules. They are meant to enhance originality, not to replace the need for permission to use original content.

1. Don’t just display comments on screen
If you only add comment overlays and play long stretches of the original, it may be seen as simple editing.

2. Use only as many comments as needed
Don’t copy large numbers of original, creative comments. Use only what’s necessary for your analysis.

3. Minimize author information
Hide or minimize unnecessary identifying details like usernames or profile pictures.

4. Don’t amplify harmful comments
Don’t edit unverified claims or aggressive comments to appear as facts.

Different Platform Judgments

Separate legal, posting, recommendation, and monetization standards.

Remember: There is no safe editing ratio or automatic exemption feature.

YouTube: Separate Processes for Copyright and Monetization

On YouTube, three systems operate independently:

1. Content ID Ownership Claims
Through automatic matching, ads may be redirected, content tracked, or blocked. This is a separate process from copyright strikes.

2. Copyright Takedown Requests and Strikes
A valid takedown request can remove your video and issue a strike to your channel. Repeated strikes increase channel risk.

3. Reused Content Review
Regardless of permission, YouTube reviews for meaningful commentary, transformation, or added value when considering monetization.

Even with the original creator’s permission, simple reuploads may be restricted from monetization.

Instagram & TikTok: Posting vs. Recommendation and Rewards

Instagram Reels
Instagram does not allow posts that infringe on others' intellectual property and encourages posting content you created or have rights to share. Even if your content remains online, recommendation and monetization eligibility are evaluated separately.

TikTok
TikTok also prohibits posting others' copyrighted material without permission or a valid legal basis. Using only a short clip or citing that others have posted it is not a strong defense. Their rewards programs have separate originality requirements.

Official remix or music features within the platform and re-uploading downloaded content are not treated the same under platform rules.

Asset Rights: More Than Just Video

Music
Check if music from the platform’s library is allowed for use on other platforms, in ads, or for external editing.

Photos & Articles
Just because something appears in search results doesn’t mean you can freely capture or use it as a thumbnail.

Fonts & Emojis
Check the license for permissions regarding video production, commercial use, and embedding.

AI-Generated Content
Review the service’s terms, rights to input materials, likenesses of people, trademarks, and music similarities.

Even if you have permission for the original video, that does not automatically include rights for embedded music or photos.

If You Receive a Copyright Notice

Check the type and basis of the notice first.

Goal of This Section
Understand how to identify the type and reason for the notice you received.

Remember: There is no safe editing ratio or automatic exemption feature.

Response Flow for Copyright Notices

When you receive a notice, first identify its type.

01 Check the Notice
Is it Content ID, a takedown request, a strike, or audio removal?

02 Gather Rights Documentation
Save any permission messages, contracts, licenses, original links, and edited versions.

03 Compare Your Options
Consider accepting, trimming the segment, replacing the audio, re-editing, or filing a dispute.

04 Only Dispute When You Have a Solid Basis
Just crediting the source or saying 'others use it too' is not enough.

If you delete a video after receiving a strike, the strike may not automatically disappear. Always check the official resolution process for the notice you received.

Evidence Kit: Save Proof Before Uploading

Keep these six items in your rights evidence folder:

- Original URL and date checked
- Rights holder's name and permission message
- License type, version, and conditions (screenshot)
- Timecodes of used segments and editing purpose
- Drafts of your script, narration, or analysis
- Upload file and original platform notice

Easy Cut Workflow: From Import to Upload

BEFORE
Before selecting a video:
- Confirm creator and original URL
- Check license and permission scope
- Verify music and photo rights separately
- Classify risk as green, yellow, or red

EDIT
While creating Shorts:
- Write main points and questions first
- Select only necessary segments
- Focus on your own commentary and analysis
- Sort comments and add new conclusions

UPLOAD
Just before uploading:
- Double-check music rights for each platform
- Note sources and changes
- Save rights evidence folder
- Complete the 30-second checklist

Easy Cut helps reduce editing time, but does not guarantee usage rights or monetization suitability.

Final 30-Second Checklist Before Upload

If you answer 'I don't know' to any item, check before publishing.

1. Confirmed the original creator and actual rights holder.
2. Verified the scope for editing, re-uploading, and commercial use.
3. Checked rights for music, photos, fonts, and comments separately.
4. Used only the necessary portion of the original for explanation.
5. My questions, commentary, or analysis are central to the video.
6. Sorted comments by meaning and added my own conclusion.
7. Did not replace the core entertainment or conclusion of the original.
8. Reviewed the platform’s reuse and originality policies.
9. Saved sources, licenses, and permission materials in a folder.
10. Will not dispute without evidence to submit in case of conflict.

What matters more than editing speed is the habit of keeping upload evidence.

Official sources

Open a title to read the official guidance. Recheck current terms before applying or publishing.

US Copyright Law (Fair Use)

copyright.gov

FTC Disclosure Guidance for Influencers

ftc.gov

YouTube Channel Monetization Policies

support.google.com

YouTube Fair Use Policy

support.google.com

YouTube Copyright Strike Information

support.google.com

Instagram Copyright Guide

facebook.com

TikTok Copyright Guide

support.tiktok.com

Creative Commons Licenses

creativecommons.org

Amazon Associates Program

affiliate-program.amazon.com